

B. White

Date: *June 21, 2013*

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND CITY CLERK TO ENTER INTO A SETTLEMENT AGREEMENT AND RE-DEVELOPMENT AGREEMENT WITH 19TH AND CONVERSE, LLC, A COLORADO LIMITED LIABILITY COMPANY, TO SETTLE ALL REMAINING ISSUES RELATING TO THE ACQUISITION OF RIGHT-OF-WAY FOR THE RE-CONSTRUCTION OF THE CONVERSE AVENUE/PERSHING BOULEVARD/19TH STREET INTERSECTIONS, AND APPROVING, AS A CONDITION OF SETTLEMENT, THE TRADE OF CERTAIN REAL PROPERTY OWNED BY THE CITY TO 19TH AND CONVERSE, LLC, DESCRIBED AS LOTS 30 AND 31, BLOCK ONE, EASTRIDGE ADDITION, HAVING AN ASSESSED VALUE OF \$81,590.00, IN EXCHANGE FOR CERTAIN REAL PROPERTY OWNED BY 19TH AND CONVERSE, LLC, CONSISTING OF APPROXIMATELY 9,504 SQUARE FEET OF LAND, BEING A PORTION OF LOTS 1 AND 2, RUTH ADDITION, HAVING AN APPRAISED VALUE BETWEEN \$190,080.00 AND \$237,600.00, BOTH PROPERTIES BEING LOCATED AT THE INTERSECTION OF CONVERSE AVENUE AND PERSHING BOULEVARD, CHEYENNE, WYOMING."

WHEREAS, the City of Cheyenne filed an eminent domain action (Civil Action No. 179-432, First Judicial District Court, Laramie County, Wyoming) against 19th and Converse, LLC, a Colorado limited liability company, for the purpose of acquiring 9,504 square feet of land needed for right-of-way for the re-construction of the Converse Avenue/Pershing Boulevard/19th Street intersections; and

WHEREAS, the City and 19th and Converse, LLC, entered into a partial settlement of the issues of the eminent domain action which are reflected in a Stipulation for Immediate Entry and Possession which was filed on October 26, 2012; and

WHEREAS, the attached Settlement Agreement and Re-Development Agreement pertain to that certain parcel of real property generally located at the intersection formed by Converse Avenue, Pershing Boulevard, and 19th Street, which is owned by 19th and Converse, LLC, and which is legally described as Lots 1, 2, 3 and 4, Ruth Addition to the City of Cheyenne, and which was formerly used as the site of the "Hollywood Video" video rental business. This parcel is referred to herein as the "site;" and

WHEREAS, the October 26, 2012 Stipulation resolved issues between the parties with respect to: the City's right to enter upon the 9,504 square feet of land needed for the re-construction of said intersections; the location of access points to the site following the acquisition of right-of-way; the manner in which traffic will circulate in and out of said access points; the relocation of certain equipment, fixtures, and facilities located along the southern elevation of the building on the site; the City's obligation to grade and pave a drive aisle along the southern elevation of said building to connect the east and west parking areas on the site; the City's obligation to grade, pave, finish and complete a parking lot located at the northwest corner of the existing Converse/Pershing intersection and to convey said parking lot to 19th and Converse, LLC, and its principals, as part of the final settlement of the eminent domain action; and

WHEREAS, the October 26, 2012 Stipulation contemplated that the parties would enter into good faith negotiations to establish the terms and conditions of a "Re-Development Agreement" to provide certainty for 19th and Converse, LLC, and its principals, with respect to regulatory compliance in the event of re-development of the site for other business or commercial uses; and

WHEREAS, the City and 19th and Converse, LLC, acting through their respective principals, officers, and attorneys have concluded the negotiations contemplated by the October 26, 2012 Stipulation and have reached a proposed final settlement of all issues which remain outstanding in the above-referenced eminent domain action; and

WHEREAS, the terms and conditions of the proposed final settlement are set forth in the attached Settlement Agreement and Re-Development Agreement, which are attached to this Resolution; and

WHEREAS, the terms and conditions of the proposed Settlement Agreement contemplate that the City will convey to 19th and Converse, LLC, certain parcels of real property, which are owned by the City and which will be improved by the City prior to conveyance of said lots to 19th and Converse, LLC, as partial consideration for the conveyance by 19th and Converse, LLC, to the City, of the 9,504 square feet needed for right-of-way purposes, said 9,504 square feet of land having an appraised value between \$190,080.00 and \$237,600.00, and said City lots having a combined assessed value of \$81,590.00; and

WHEREAS, the City-owned lots, which will be conveyed to 19th and Converse, LLC, pursuant to the attached Settlement Agreement, were acquired by the City on the assumption that said lots, or some portion thereof, would be needed for right-of-way purposes in connection with the reconstruction of the Converse Avenue/Pershing Boulevard/19th Street intersections, that, upon final design, the said lots were not and are not needed for right-of-way or any other City purpose, and that said lots may be exchanged pursuant to W.S. § 15-5-112.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Mayor and City Clerk are authorized to enter into and execute the Settlement Agreement and Re-Development Agreement attached to this Resolution, to convey the above-described City-owned lots to 19th and Converse, LLC, and to provide such other and further consideration as specified in said Settlement Agreement, in exchange for the 9,504 square feet of land to be acquired by the City for right-of-way purposes and to effectuate the remaining terms and conditions of settlement, to execute such other and further documents, to take such other actions as may be determined by the City Attorney to be reasonable and necessary to implement the attached agreements and to secure the final settlement and dismissal of the above-referenced eminent domain action.

PRESENTED, READ AND ADOPTED THIS _____ DAY OF _____, 2013.

Richard L. Kaysen, Mayor

(SEAL)

Attest:

Carol Intlekofer, City Clerk

SETTLEMENT AGREEMENT

This Settlement Agreement ("Agreement") is made and entered into by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, ("City"), 19th and Converse LLC, a Colorado limited liability company ("19th and Converse LLC"), and Marlene Bauer and Daniel Bauer (collectively, "the Bauers").

RECITALS:

WHEREAS, this Agreement pertains to that certain parcel of real property generally located at the intersection formed by Converse Avenue, Pershing Boulevard, and 19th Street, which is owned by 19th and Converse LLC and which is legally described as Lots 1, 2, 3 and 4, Ruth Addition to the City of Cheyenne. This parcel is referred to herein as the "Site;" and

WHEREAS, the City filed an eminent domain action (Civil Action No. 179-432, First Judicial District Court, Laramie County, Wyoming) (the "Civil Action") against the Site and 19th and Converse, LLC, for the purpose of acquiring 9,504 square feet of land (the "Property") needed for right-of-way for the re-construction of the Converse Avenue/Pershing Boulevard/19th Street intersections located immediately east of and adjacent to the Site (the "Project"); and

WHEREAS, the parties entered into a partial settlement of the issues in the Civil Action which is reflected in a Stipulation for Immediate Entry and Possession which was filed on October 26, 2012; and

WHEREAS, the October 26, 2012 Stipulation, in addition to granting immediate entry, contemplated that the parties were to negotiate terms and conditions of a "Development Agreement" to provide certainty to 19th and Converse LLC, and the Bauers, with respect to regulatory compliance in the event 19th and Converse LLC, or the Bauers, wish to re-develop the Site; and

WHEREAS, the City, 19th and Converse LLC, and the Bauers have now agreed to certain terms and conditions of a "Re-Development Agreement" and, in addition, wish to resolve all other matters relating to the Site, the Project, compensation for the acquisition of the Property, the Civil Action, and any and all other claims, counterclaims, issues and causes of action that were or could have been included in the Civil Action.

THEREFORE, IN CONSIDERATION OF THE ABOVE RECITALS, MUTUAL COVENANTS, BENEFITS AND CONSIDERATION PROVIDED EACH TO THE OTHER, THE PARTIES MUTUALLY COVENANT AND AGREE AS FOLLOWS:

1. The City shall continue to have the right of entry and possession of the Property, as provided in the Order Permitting Immediate Entry entered in the above-referenced eminent domain action, to proceed with and to complete the Project, including construction of a

modern roundabout to replace the existing Converse Avenue/Pershing Boulevard/19th Street intersections in Cheyenne, Wyoming, and all related temporary construction easements for construction, improvements and reclamation related to the Project which are granted by the Bauers and 19th and Converse LLC. 19th and Converse LLC, and the Bauers, agree to execute such temporary construction easements and other similar documents as may be reasonably requested by the City for the purposes of implementing the terms and conditions of this Settlement Agreement.

2. At closing, 19th and Converse LLC shall execute and deliver a Warranty Deed in the form attached hereto as Exhibit 1. At closing, the City shall issue a check in the amount of Four Hundred Thousand Dollars (\$400,000.00) drawn on the accounts of the City and made payable to 19th and Converse LLC. 19th and Converse LLC shall, at its expense, purchase minimum value title insurance to insure the City's title to the Property from a title insurance company authorized to do business in the State of Wyoming. 19th and Converse LLC, shall cause a commitment for the issuance of said title insurance policy to be issued to the City at least ten (10) business days prior to the date for closing of the transaction specified in this Section of this Settlement Agreement. Closing shall take place on or before July 31, 2013. Following closing, the City shall have the right to immediately record said Warranty Deed in the books and records of the Laramie County Clerk and ex-officio register of deeds.

3. In addition to compensation in the amount of Four Hundred Thousand Dollars (\$400,000.00) to be paid by the City to 19th and Converse LLC, the City shall provide the following real property, improvements and benefits, as specified herein, to 19th and Converse LLC:

a. The City shall grade, pave, stripe, and block two lots located immediately to the north of the Site, across Pershing Boulevard, legally described as Lots 30 and 31, Block One, Eastridge Addition to the City of Cheyenne, in accordance with the requirements of the Unified Development Code ("UDC") and other applicable provisions of the Cheyenne City Code. The City will also landscape and provide buffering for these lots in accordance with the UDC, and other applicable provisions of the Cheyenne City Code, during the Spring of 2014 as weather conditions permit. It is mutually understood and agreed that these parking lot improvements will be constructed by Simon Contractors pursuant to its contract with the City to construct the roundabout described herein. It is also mutually understood and agreed that the City will not grant final acceptance of these parking lot improvements until all requirements for landscaping and buffering have been fulfilled by Simon Contractors. In the event, the Bauers wish to use Lots 30 and 31 for parking lot purposes prior to final acceptance of the improvements to said lots to be constructed by Simon Contractors, the City and the Bauers will enter into a separate lease agreement for said purposes.

b. Within ten (10) business days after completion and acceptance of the parking lot improvements described in subsection a. of this Section, the City shall convey Lots 30 and 31, Block One, Eastridge Addition, to 19th and Converse LLC, and to the Bauers, by Warranty Deed, in the form attached hereto as Exhibit 2. The City

shall, at its expense, purchase minimum value title insurance to insure title to this property from a title insurance company authorized to do business in the State of Wyoming. The City shall cause a commitment for the issuance of said title insurance policy to be issued to 19th and Converse LLC, at least ten (10) business days prior to the closing date for the transaction specified in this subsection of this Settlement Agreement. The Warranty Deed shall convey title to 19th and Converse LLC, and to the Bauers, without deed restrictions other than reservations, easements and encumbrances of record, and those visible upon inspection. 19th and Converse LLC shall have the right to immediately record said Warranty Deed in the books and records of the Laramie County Clerk and ex-officio register of deeds.

c. With respect to access to and from the Site, the City agrees, and shall provide the following ingress to and egress from the Site as follows: (1) the north access to and from the west parking area will be all movement; (2) the south access to and from the west parking area will be only right in from the westbound lanes of 19th Street and right out to the westbound lanes of 19th Street; (3) the north access to the east parking area will be right in only from the eastbound lanes of Pershing Boulevard; and (4) the south access to the east parking area will be right in only from the westbound lanes of 19th Street. These provisions relating to ingress and egress are reflected in the diagram attached hereto as Exhibit 3.

d. It is mutually understood and agreed that the two lots described in subsection b. of this section shall be conveyed to 19th and Converse LLC fully constructed and completed in usable condition as a parking lot. With respect to access to and from said parking lot, the east access to the parking lot will be in the location of the existing alley and will provide right in only ingress from the southbound lanes of Converse Avenue and right out only egress to the southbound lanes of Converse Avenue. The south access to the parking lots will be located west of the pedestrian crosswalk which will be constructed as part of the construction of the roundabout described above and will provide right in only ingress from the westbound lanes of Pershing Boulevard and right out only egress to the westbound lanes of Pershing Boulevard. These provisions relating to ingress and egress are reflected in the diagram attached hereto as Exhibit 4.

e. The City will, at its expense, and in consultation with 19th & Converse LLC, relocate the ozone sparging equipment from its present location to a point along the western boundary of the Site and will also secure the relocation of the Cheyenne Light, Fuel & Power Company ("CLF&P") electric transformer which is located along the south elevation of the "Hollywood Video" building on the Site. If required by CLF&P, the City will pay all expenses associated with the relocation of the electric transformer. The electric transformer may be relocated to property other than the Site. Within thirty (30) calendar days after the execution of this Agreement, 19th and Converse LLC, and the Bauers, shall, at their expense, provide a design, having standard, reasonable and necessary specifications, for the construction of a drive aisle to provide one-way traffic movement from the east parking area to the west parking

area of the Site. Upon receipt of a design which complies with the requirements of this subsection, the City shall, no later than November 15, 2013, and at its expense, construct a drive aisle in accordance with the design. In this process, the City will, at its expense, remove the drainage facility that is currently located on the Site.

f. The City will restore, reclaim and pave those parts of the Site that are damaged during temporary use of the Site and construction of the Project, and will install all accesses, valley pans, curb and gutter as necessary to blend the Site together with construction of the Project.

4. The City and 19th and Converse LLC, further agree to the terms of the Re-Development Agreement attached hereto as Exhibit 5. In order to establish the status of the property the City shall include the 19th and Converse LLC site in the re-plat of the area of the roundabout.

5. 19th and Converse LLC, and Marlene Bauer and Daniel Bauer, on behalf of themselves and their heirs, trustees, personal representatives, agents, employees, successors and assigns, and in exchange for the above consideration, real property, improvements and compensation, do hereby release and discharge the City of Cheyenne and all of its agencies, agents, officers, employees, servants and affiliates from any and all claims, causes of action, actions, judgments, liens, indebtedness, damages, losses, liability and demands of whatever kind arising from or relating to the Site, the Project, and the Civil Action, including but not limited to claims for loss of temporary use of the Site, loss of and / or compensation for the Property, loss of business and business income, loss of goodwill, and any and all other claims or causes of action that were or could have been made in the Civil Action.

6. The City and 19th and Converse LLC, agree to file a stipulation for dismissal and present a proposed order of dismissal to the First Judicial District Court in the Civil Action within ten (10) business days following the execution of this Agreement. Said stipulation and proposed order shall provide for the reimbursement to the City of the deposit of Four Hundred Thousand Dollars (\$400,000.00), including accrued interest, which was paid by the City into the registry of the First Judicial District Court upon the commencement of the Civil Action.

7. The City and 19th and Converse LLC, agree to cooperate one with the other to take any other reasonable and necessary actions to implement the terms of this Settlement Agreement. The obligations of the parties under this Settlement Agreement and the attached Re-Development Agreement shall survive and remain in full force and effect following the dismissal of the Civil Action. The dismissal of the Civil Action shall not prejudice the right of any party to seek judicial enforcement of the terms and conditions of this Settlement Agreement and Re-Development Agreement attached hereto.

Dated this _____ day of _____, 2013.

City of Cheyenne, Wyoming

19th and Converse LLC

By: _____
Richard L. Kaysen, Mayor

By: _____
Marlene Bauer

Marlene Bauer

Daniel Bauer

ACKNOWLEDGEMENT

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

Subscribed, sworn to and acknowledged before me by Richard L. Kaysen, Mayor of the City of Cheyenne, this _____ day of _____, 2013.

Witness my hand and official seal.

Notary Public

(SEAL)

My Commission Expires: _____

ACKNOWLEDGEMENT

STATE OF COLORADO)
) ss.
COUNTY OF _____)

Subscribed, sworn to and acknowledged before me by Marlene Bauer, _____ for 19th and Converse LLC, this _____ day of _____, 2013.

Witness my hand and official seal.

Notary Public

(SEAL)

My Commission Expires: _____

[illegible]

Witness my hand and official seal.

(SEAL)
My Commission Expires: _____

[illegible]

Witness my hand and official seal.

(SEAL)
My Commission Expires: _____

WARRANTY DEED

19th and Converse LLC, a Colorado limited liability company, Grantor, whose address is 2475 Baystone Court, Colorado Springs, Colorado 80921, for and in consideration of Ten Dollars (\$10.00) and other good and valuable consideration in hand paid, receipt whereof is hereby acknowledged, conveys and warrants to the City of Cheyenne, Wyoming, a municipal corporation, Grantee, whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, its successors and assigns, the following described real estate situated in Laramie County, Wyoming, hereby releasing and waiving all rights under and by virtue of the homestead exemption laws of the State of Wyoming, to-wit:

Portions of Lots 1 and 2, Block 1, Ruth Addition, City of Cheyenne, Laramie County, Wyoming, more particularly described as follows:

Parcel A

Beginning at the northeast corner of Lot 2 of said Block 1; thence S. 89°50'49" W., along the north line of said Lot 2, a distance of 46.38 feet; thence S. 72°37'27" E., a distance of 48.58 feet to the east line of said Lot 2, thence N. 00°02'15" E., along said east line, a distance of 14.63 feet to the point of beginning. Containing 339 square feet more or less.

Parcel B

Beginning at the southeast corner of Lot 2 of said Block 1; thence N. 00°02'15" E., along the east line of said Lot 2, a distance of 12.28 feet; thence S. 47°53'55" W., a distance of 32.05 feet; to the south line of said Lot 2, thence N. 68°49'49" E., along said south line, a distance of 25.49 feet to the point of beginning. Containing 146 square feet more or less.

Parcel C

All of Lot 1, Block 1, EXCEPT the following:
Beginning at a point on the west line of Lot 1 of said Block 1, from which the northwest corner of said Lot 1 bears N. 00°02'15" E., a distance of 14.63 feet; thence S. 00°02'15" W., along said west line, a distance of 89.48 feet; thence N. 49°34'05" E., a distance of 41.66 feet; thence N. 18°57'15" W., a distance of 58.69 feet; thence N. 61°03'22" W., a distance of 14.38 feet to the point of beginning. Containing 9,019 square feet more or less.

Subject to all easements, restrictions, reservations and exceptions of record.

Dated this _____ day of _____, 2013.

19th and Converse LLC

By: _____

Title: _____

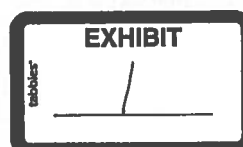
STATE OF _____)
COUNTY OF _____) ss.

The foregoing instrument was acknowledged before me by _____, as _____ of 19th and Converse LLC, on this _____ day of _____, 2013.

Witness my hand and official seal.

Notary Public

My Commission Expires: _____



WARRANTY DEED

The City of Cheyenne, Wyoming, a municipal corporation, Grantor, whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001, for and in consideration of Ten Dollars (\$10.00) and other good and valuable consideration in hand paid, receipt whereof is hereby acknowledged, conveys and warrants to 19th and Converse LLC, a Colorado limited liability company, Grantee, whose address is 2475 Baystone Court, Colorado Springs, Colorado 80921, its successors and assigns, the following described real estate situated in Laramie County, Wyoming, hereby releasing and waiving all rights under and by virtue of the homestead exemption laws of the State of Wyoming, to-wit:

Lots 30 and 31, Block 1, Eastridge Addition, City of Cheyenne, Laramie County, Wyoming.

Subject to all easements, restrictions, reservations and exceptions of record.

Dated this _____ day of _____, 2013.

City of Cheyenne, Wyoming

By: _____
Richard L. Kaysen, Mayor

(SEAL)
Attest:

Carol Intlekofer, City Clerk

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

The foregoing instrument was acknowledged before me by Richard L. Kaysen, as Mayor of the City of Cheyenne, Wyoming, on this _____ day of _____, 2013.

Witness my hand and official seal.

Notary Public

My Commission Expires: _____



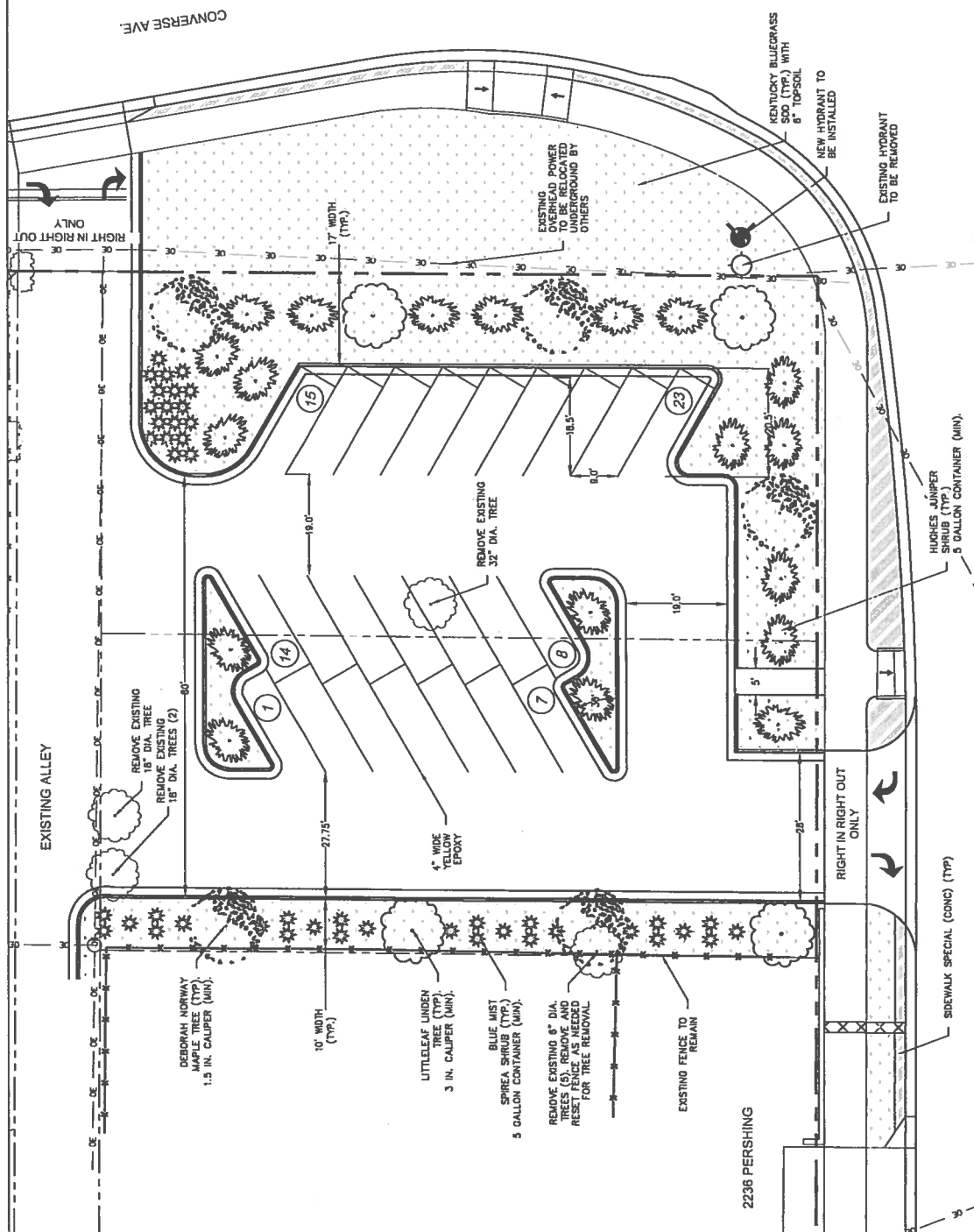
NOTES

1. ALL EXISTING TREES TO BE REMOVED.

2. ALL IRRIGATION TO BE DONE BY OTHERS.

COMPUTATION TABLE

TOTAL SITE AREA: 17445 sf.
TOTAL PARKING AREA = 0 sf.
TOTAL PARKING/PAVED AREA: 11723 sf.
LANDSCAPING REQUIRED: 8' PERIMETER BUFFER = 2718 sf.
LANDSCAPING PROVIDED: 5722 sf.
TREE REQUIREMENTS: SUM OF ALL TREE POINTS MUST EXCEED THE REQUIRED LANDSCAPE AREA DIVIDED BY 500
= 5.7 PTS
LITTLELEAF LINDEN = 4 TREES @ 1.25 PTS EA
= 5 PTS
DEBORAH MONROE MAPLE = 5 TREES @ 1.25 PTS EA
= 6.25 PTS
TOTAL TREE POINTS = 11.25
GROUND COVER AND NON-TREE FEATURE REQUIREMENTS: SUM OF ALL GROUND COVER AND NON-TREE FEATURE POINTS MUST EXCEED THE REQUIRED LANDSCAPE AREA DIVIDED BY 500
= 5.4 PTS
SPRUE SPRUCE = 45 SHRUBS @ 1 PT PER 10 SHRUBS
= 4.5 PTS
HUGHES CORNERS SHRUB = 19 SHRUBS @ 1 PT PER 10 SHRUBS
= 1.9 PTS
KENTUCKY BLUEGRASS = 5722 SF @ 0.5 PT PER 500 SF
= 5.7 PTS
TOTAL GROUND COVER AND NON-TREE FEATURE POINTS = 12.1
STREET TREE REQUIREMENTS: NOT REQUIRED



COMMON NAME	SCIENTIFIC NAME	SIZE	SPACING	QUANTITY
DEBORAH NORWAY MAPLE	ACER PLATANOIDES * DEBORAH ¹	1.5 IN. CALIPER (MIN.)	35' OC	5
LITTLELEAF LINDEN	TILIA CORDATA	3 IN. CALIPER (MIN.)	35' OC	4
BELLE WIST SPHERA	CARYOPTERIS CLAUDONENSIS	5 GALLON CONTAINER (MIN.)	3'-6' OC	45
HUGHES JASMINE	JUNIPERUS HORIZONTALIS	5 GALLON CONTAINER (MIN.)	10'-12' OC	18
KUCKER'S BLUEGRASS	POA PRATENSIS	N/A	N/A	5722 5'

HOLLYWOOD VIDEO SITE RE-DEVELOPMENT AGREEMENT

This Agreement is made and entered into by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming ("City"), and 19th and Converse LLC, a Colorado limited liability company, acting by and through its authorized representatives ("the Bauers") as follows:

RECITALS:

WHEREAS, this Agreement pertains to that certain parcel of real property generally located at the intersection formed by Converse Avenue, Pershing Boulevard, and 19th Street, which is owned by 19th and Converse, LLC, and which is legally described as Lots 1, 2, 3 and 4, Ruth Addition to the City of Cheyenne. This parcel is referred to herein as the "site;" and

WHEREAS, the City filed an eminent domain action (Civil Action No. 179-432, First Judicial District Court, Laramie County, Wyoming) against 19th and Converse LLC, and its principals (the "Bauers") for the purpose of acquiring 9,504 square feet of land needed for right-of-way for the re-construction of the Converse Avenue/Pershing Boulevard/19th Street intersections located immediately east of and adjacent to the site; and

WHEREAS, the parties entered into a partial settlement of the issues of the eminent domain action which are reflected in a Stipulation for Immediate Entry and Possession which was filed on October 26, 2012; and

WHEREAS, the October 26, 2012 Stipulation resolved issues between the parties with respect to: the City's right to enter upon the 9,504 square feet of land needed for the re-construction of said intersections; the location of access points to the site following the acquisition of right-of-way; the manner in which traffic will circulate in and out of said access points; the relocation of certain equipment, fixtures, and facilities located along the southern elevation of the building on the site; the City's obligation to grade and pave a drive aisle along the southern elevation of said building to connect the east and west parking areas on the site; the City's obligation to grade, pave, finish and complete a parking lot located at the northwest corner of the existing Converse/Pershing intersection and to convey said parking lot to the Bauers as part of the final settlement of the eminent domain action; and

WHEREAS, the October 26, 2012 Stipulation contemplates that the parties will enter into good faith negotiations to establish the terms and conditions of this "Re-Development Agreement" to provide certainty for the Bauers with respect to regulatory compliance in the event the Bauers wish to re-develop the site.

IT IS THEREFORE MUTUALLY UNDERSTOOD AND AGREED AS FOLLOWS:

1. Following the re-construction of the Converse/Pershing/19th Street intersections, and following the completion of construction of on-site improvements as provided by the October 26, 2012 Stipulation, the City will, at its expense, cause a site plan to be prepared that shall depict and

describe the features and uses of the site that will then be existing including, without limitation, platting data from the re-plat of the roundabout construction area, adjacent street networks, sidewalks, landscaping, screening, buffering, signage, lighting, drainage facilities, public utility easements, the location and area of the existing building, access and circulation points, parking areas, and existing uses. This site plan shall be referred to as the "Baseline Site Plan" for the site.

2. The Bauers shall be entitled to use the site under the Baseline Site Plan for so long as the site and the existing building are used for any use which is classified as permitted by right (i.e., uses designated as "P" in Table 5.1 of the UDC). The Bauers shall not be entitled to use the site for any use which is allowed after administrative review (uses designated as "A" in Table 5.1 of the UDC) or for any use which is allowed after conditional discretionary review and approval (uses designated as "C" in Table 5.1 of the UDC) without complying with the review and approval procedures for such uses specified in the UDC.

3. The Bauers will be required to submit a new site plan, pursuant to the requirements of the Unified Development Code of the City of Cheyenne ("UDC"), only if: (1) the existing building is intentionally demolished and a new building is erected on the site; or (2) the Bauers construct an addition or additions to the existing building which, singly or in combination, expand the square footage of the existing building, as shown on the Baseline Site Plan, by more than ten percent (10%). If the existing building is destroyed by fire or other casualty and rebuilt on the same or substantially similar footprint, no new site plan will be required. For the purposes of this Agreement, the phrase "substantially similar footprint" shall mean that the total length of the perimeter of the new building does not exceed the total length of the perimeter of the existing building by more than ten percent (10%) and that the footprint of the new building occupies at least ninety percent (90%) of the footprint of the existing building.

4. In the event the Bauers intentionally demolish the existing building and erect any new building on the site, the Bauers will be required to submit a new site plan which shall comply in all respects with the UDC without modification.

5. In the event the Bauers construct an addition or additions to the existing building which, singly or in combination, expand the existing building by more than ten percent (10%), the Bauers will be required to submit a new site plan depicting changes from the Baseline Site Plan and demonstrating compliance with the requirements of the UDC relating to setbacks and lot coverage, except that:

a. The provisions of UDC Sub-Article 6.2 shall not be construed to require landscaping which is in addition to the landscaping shown on the Baseline Site Plan; and

b. The provisions of UDC Sub-Article 6.7 will apply only to the addition or additions to the existing building.

6. In the event the Bauers are required by this Re-Development Agreement to submit a new site plan, the total number of parking spaces indicated on the Baseline Site Plan and all parking spaces to be located in the parking lot which will be constructed on the northwest corner of

the Converse Avenue/Pershing Boulevard intersection, shall be credited to the site for the purpose of satisfying the parking requirements of UDC Sub-Article 6.2.

7. UDC Sub-Article 6.2 provides design standards for Parking, Lot Access and Circulation. The access points and provisions for circulation of traffic to and from the site, which provisions are set forth in the Stipulation for Immediate Entry and Possession, filed October 26, 2012, in the above-referenced eminent domain action, shall be deemed to comply in all respects with UDC, Section 4.3.6., and UDC Sub-Article 6.2. In the event parking requirements associated with any new use of the site exceed the number of parking spaces to be credited to the site pursuant to this Section, the Bauers may seek relief from such requirements in accordance with the procedures provided by the UDC. The Bauers may alter the provisions of the October 26, 2012 Stipulation relating to access and circulation in accordance with standards and procedures established by the UDC.

8. The provisions of UDC Section 6.3.5 pertaining to screening and buffering along common property lines and alleys shall apply regardless of the involuntary taking of right-of-way needed for the re-construction of the Converse/Pershing/19th Street intersections because the taking has not resulted in any alteration of said common property lines or alleys.

9. The requirements of UDC Sub-Article 6.4 and UDC Sub-Article 6.5 shall apply regardless of the involuntary taking of right-of-way needed for the reconstruction of the Converse/Pershing/19th Street intersections.

10. In the event any dispute arises with regard to the meaning or application of this Agreement, the City and the Bauers shall first attempt to resolve any such dispute pursuant to the administrative adjustment provisions of UDC Section 2.3.4.

11. In the event the Bauers acquire land adjacent to the site with the intention of using said land in connection with uses on the site, the re-development of the adjacent land shall be subject to the UDC without modification. In addition, if it becomes necessary to make modifications to the site to make the adjacent land usable in connection with uses on the site, any such modifications of the site shall be subject to the UDC unless such requirements are modified pursuant to the provisions of the UDC which relate to variances.

12. The entitlements created by this Agreement shall inure to the benefit of the Bauers and their successors in interest for so long as the Bauers, or their successors in interest, continue to use the existing building (or, pursuant to Section 3 of this Agreement, a replacement building in the event the existing building is destroyed by fire or other casualty) for any use permitted or allowed in the MUB zone pursuant to the requirements and procedures of the UDC.

13. Except to the extent provided by this Re-Development Agreement, the provisions of the UDC shall remain fully applicable to future development activities and uses of the site. Future amendments to the UDC shall also be fully applicable to future development and activities and uses of the site, except that future amendments to the UDC shall not be construed to alter the substantive rights and obligations of the parties under this Re-Development Agreement.

Dated this ____ day of _____, 2013.

City of Cheyenne, Wyoming

19th and Converse LLC

By: _____
Richard L. Kaysen, Mayor

By: _____
Marlene Bauer

Marlene Bauer

Daniel Bauer

ACKNOWLEDGEMENT

STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

Subscribed, sworn to and acknowledged before me by Richard L. Kaysen, Mayor of the City of Cheyenne, this ____ day of _____, 2013.

Witness my hand and official seal.

Notary Public

(SEAL)

My Commission Expires: _____

ACKNOWLEDGEMENT

STATE OF COLORADO)
) ss.
COUNTY OF _____)

Subscribed, sworn to and acknowledged before me by Marlene Bauer, _____ for 19th and Converse LLC, this ____ day of _____, 2013.

Witness my hand and official seal.

Notary Public

(SEAL)

My Commission Expires: _____

ACKNOWLEDGEMENT

STATE OF COLORADO)
) ss.
COUNTY OF _____)

Subscribed, sworn to and acknowledged before me by Marlene Bauer this ____ day of _____, 2013.

Witness my hand and official seal.

Notary Public

(SEAL)
My Commission Expires: _____

ACKNOWLEDGEMENT

[illegible]

Subscribed, sworn to and acknowledged before me by Daniel Bauer this ____ day of _____, 2013.

Witness my hand and official seal.

Notary Public

(SEAL)
My Commission Expires: _____